Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1486
Claimant:	Jimmy Silva
Adjuster:	Darin Tyler

2-11-25 - Claim opened following report of a sideswipe collision during a lane change on a multi-lane roadway. Insured vehicle contacted the rear quarter panel of the claimant's vehicle. Both drivers reported no visible police presence at scene; exchange of information completed. Initial contact made with the claimant, who reports a back strain following the impact and has not yet sought treatment.

2-15-25 - Recorded recorded statement from the insured driver. Insured states they checked mirrors and signaled before moving into the adjacent lane, and did not see the claimant vehicle in the blind spot. Photos of both vehicles received and added to file. Damage appears consistent with a glancing side contact.

2-17-25 - Spoke with the claimant by phone. Claimant is not represented by an attorney and says they are managing communications directly. Claimant describes loewr back pain and stiffness, with symptoms worse in the morning. Claimant has been advised of the medical payments coverage available under the policy and was given the process for submitting treatment records.

2-20-25 - Claimant provided a copy of an urgent care visit note listing a lumbar strain and recommending rest, over-the-counter pain relief, and follow-up with a primary care provider if symptoms persist. Note added to file. Requested authorization to obtain the full treatment record, which the claimant has agreed to provide.

2-26-25 - Vehicle inspection scheduled and completed; repair estimate received and under review. Liability assessment leans toward the insured driver based on the lane change and the statement provided. Bodily injury claim remains open pending updated medical status from the claimant. Follow-up call to be placed to the claimant to confirm treatment progress and any additional expenses incurred.

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Bodily Injury Unit

Recorded Statement

Claim number:	C-1486
Statement of:	Jimmy Silva
Taken by:	Darin Tyler
Date:	2-9-25

Q: Thank you for agreeing to give this recorded statement. Please state your full name for the record.

A: I'd rather not give my full name on the recording, but you can use the claim file.

Q: That's fine. Can you tell me where you were when the accident happened?

A: I was driving on a multi-lane road in Sugar Land, Texas, heading toward the freeway. It was around the middle of the afternoon.

Q: What were you doing right before the collision?

A: I was changing lanes to the right because I needed to exit. I checked my mirror and saw nothing close, so I signaled and started to move over.

Q: Did you see the other vehicle at any point?

A: Not until it was right next to me. It came up in the lane I was moving into and we sideswiped each other. I heard a loud scrape and felt my car jerk.

Q: Did you or the other driver stop afterward?

A: Yes, we both pulled onto the shoulder. We exchanged insurance information and nobody called an ambulance at the scene.

Q: How are you feeling now?

A: My lower back is sore and stiff, mostly when I sit for a long time or get out of the car. I felt it that same evening and it has been getting a little worse each day.

Q: Have you seen a doctor or received any treatment?

A: I went to an urgent care clinic the next morning. They diagnosed a back strain, gave me muscle relaxers, and told me to rest and do physical therapy.

Q: Are you still having trouble with work or daily activities?

A: Yes, lifting and bending are difficult, and I've had to limit how long I drive. I'm trying to keep up with my appointments.

Q: Is there anything else you'd like to add to your statement?

A: No, I think that covers it. I'm willing to provide my medical records if you need them.

Q: Thank you. This concludes the recorded statement.